

Court No. - 9

Case :- WRIT - C No. - 6055 of 2010

Petitioner :- Sri Ram Yadav

Respondent :- U.P. Power Corporation Shakti Bhawan & Ors.

Petitioner Counsel :- A.C. Tiwari,A.B. Sinha

Respondent Counsel :- Mridul Tripathi

Hon'ble Vijay Manohar Sahai,J.

Hon'ble Ritu Raj Awasthi,J.

Since the earlier writ petition filed by the petitioner was heard by a division bench presided over by Hon'ble Ashok Bhushan, J, we are of the opinion that this matter should also be heard by the same bench.

Lay as fresh before the aforesaid Bench on 17.2.2010 along with W.P.No.2965 of 2010 after obtaining nomination from Hon'ble the Chief Justice.

Order Date :- 15.2.2010

SC

Court No. - 2

Case :- WRIT - C No. - 6055 of 2010

Petitioner :- Sri Ram Yadav

Respondent :- U.P. Power Corporation Shakti Bhawan & Ors.

Petitioner Counsel :- A.C. Tiwari,A.B. Sinha

Respondent Counsel :- Mridul Tripathi

Hon'ble Ashok Bhushan,J.

Hon'ble Virendra Singh,J.

As prayed, put up tomorrow as fresh.

Order Date :- 17.2.2010

Rakesh

Court No. - 2

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Petitioner Counsel :- A.C. Tiwari, A.B. Sinha

Respondent Counsel :- Mridul Tripathi

Hon'ble Ashok Bhushan, J.

Hon'ble Virendra Singh, J.

Heard, Shri A.C. Tiwari, learned counsel for the petitioner and Mridul Tripathi for the respondents.

No notice is issued to the respondent nos. 4 and 5 in view of the order which is being passed.

Learned counsel for the parties agree that the writ petition be finally disposed of.

By this petition, petitioner has prayed for quashing the order dated 25/1/2010, by which order the objection filed by the petitioner against the provisional assessment has been finalised and the representation of the petitioner has been rejected. An inspection was made on 21/8/2009, by the inspection team of the respondents on the basis of which the provisional assessment was made. Petitioner had earlier come before this Court by filing Writ Petition No.47550/2009, challenging the inspection. This Court disposed of the petition on 16/9/2009, noticing that fresh notice has already been issued to the petitioner inviting objections. The writ petition was disposed of directing for taking a decision within four weeks. A notice was issued to the petitioner on 14/10/2009, along with notice dated 04/9/2009. The petitioner filed objection on 20/10/2009, which is filed as Annexure-6 to the writ petition. Petitioner thereafter submitted another letter to the Executive Engineer on 09/11/2009, praying that his connection be restored by taking sympathetic consideration.

Learned counsel for the petitioner challenging the order contended that while passing the impugned order the objections, which were filed by the petitioner on 20/10/2009 has not been considered and only the subsequent letter has been considered. The learned counsel for the petitioner submits that the assessment which has been made is also not in accordance with the provisions of Electricity Act and U.P. Electricity Supply Code, 2005. He contends that the assessment has been made for 365 days and no effort was made by the respondents to find out the actual number of days in which electricity was used. At the time of inspection it was found that the electricity was disconnected and the meter was running.

We have heard learned counsel for the parties and have perused the record.

A perusal of the order impugned indicates that although notice was given to the petitioner on 14/10/2009, after the order of this Court dated 16/9/2009, of which a detailed reply was given by the petitioner on 20/10/2009 and the

subsequent letter which was sent by the petitioner on 09/11/2009, was not in reference to the notice nor contained a detailed objection. The objection raised vide letter dated 20/10/2009 by the petitioner having not been considered, we are satisfied that it is a fit case where the respondents be directed to take a fresh decision.

In view of the aforesaid, the order dated 25/1/2010, is hereby quashed. Petitioner is also given liberty to file all relevant and additional documents which he wants to rely on within three weeks from today. The respondents may take a fresh decision in accordance with law.

With the aforesaid observation writ petition stands disposed of.

Order Date :- 18.2.2010

SB